Code of Conduct And Disciplinary Procedures For Students

Preamble

The Code of Student Conduct shall nurture and protect the core values of the university in promoting high standards of teaching and learning. The university premises offer a safe and secure learning environment and protect students and staff inclusive of properties and processes that support the university and its missions. The core functions of the university include teaching and learning, research, consultancy and service. Students shall have academic freedom to openly exchange ideas and opinions in pursuit of high academic achievements.

University students at CUZ prodigiously represent the youth of a nation. The quality of education imparted to them cultivates their capacity and ability to play their roles effectively in diverse professional fields and businesses during their university life and after graduation. It is envisaged that university education will help the students to acquire knowledge, skills, competencies and change in attitudes and values. Education catalyses students' professional, personal and moral development. Sheer professional education in varied disciplines is inadequate to assist students to cope with the social and moral challenges of societies, unless it is strengthened with adequate moral grooming.

CUZ education is designed to inculcate students' values and moral behaviour. CUZ believes in and is committed to graduating ethically responsible students and future professionals in all disciplines in line with highest standards of faculty integrity and overall ethical conduct. The university endeavours to support growth of individual responsibility by faculty, students, and administrators to uphold highest education and ethical standards.

All CUZ students shall at all times maintain the highest standards of honesty, accountability, integrity and leadership. They will individually and collectively strive for these standards in pursuit of academic excellence, and respect for the property and individual rights of others.

1.0 Jurisdiction

This Code of Conduct applies to on and off-campus conduct of all registered students and individuals using university academic resources in relation to:

- Academic module requirements or any credit-bearing understandings, such as placements, field trips, study abroad, or student teaching;
- Any activity undertaken in pursuit of a degree, such as research at another institution or a professional practice assignment;
- Any activity sponsored, conducted, or authorized by the university or by registered student bodies;
- Any activity that causes substantial destruction of property belonging to the university or members of the university community, or causes or threatens serious harm to the safety or security of members of the university community; and
- Any activity in which a police report has been filed, a summons or indictment issued, or an arrest has occurred for a crime or violence.

The Code of Conduct applies to all premises of CUZ. However, students attending at regional campuses, centres, or institutes are advised to consult with the management/administration of those centers for additional information or rules pertaining to those locations. Withdrawal from the university, delisting from

classes, or subsequently ceasing to be a student does not render the Code of Conduct ineffective. Note that, this Code of Conduct is not a substitute to state laws. In cases where the student violates the law of the land, the university may proceed with university disciplinary action under the Code independently of any criminal proceeding involving the same conduct and may impose sanctions for violation of the Code.

2.0 Prohibited Conduct

Prohibited conduct refers to misconduct by students. Behaviours perceived as misconduct are contained herein. Violation of any of the rubrics spelt out by the Code of Conduct by students while within the university's jurisdiction, shall call for disciplinary action by the university.

Preventing the occurrence of a prohibited conduct under circumstances that demonstrate a voluntary renunciation of the prescribed behaviour will not be subject to disciplinary action by the university.

The rubrics perceived as misconduct by students include but are not limited to what is stipulated below.

2.1 Academic Misconduct

Academic misconduct refers to any activity that compromises academic integrity of the university or sabotage the educational process. Examples of academic misconduct include, but are not limited to:

- Violation of module rules as contained in the Academic Policy or other information provided to the student;
- Examination malpractices such as providing information to other students during tests or examinations or allowing them to use unauthorized materials (mobile devices or written material) in examination rooms;
- Knowingly providing assistance to other students or using unauthorized assistance in the laboratory, on field work, in studies or module assignments;
- Plagiarising other people's work for an academic requirement or accepting plagiarised work by students;
- Submitting substantially the same work to satisfy requirements for one module or academic requirement that has been submitted in satisfaction of requirements for another module or academic requirement without permission of the instructor of the module for which the work is being submitted or supervising authority for the academic requirement;
- Falsification, fabrication, or dishonesty in creating or reporting laboratory results, research results, and/or any other assignments;
- Serving as, or enlisting the assistance of, a substitute for a student in any graded assignments;
- Alteration of grades or marks by the student in an effort to change the earned grade or credit;
- Alteration of academically related university forms or records, or unauthorized use of those forms or records;
- Engaging in activities that unfairly place other students at a disadvantage, such as taking, hiding or altering resource material, or manipulating a grading system; and
- Violation of programme regulations as established by departmental committees and made available to students.
- Violation of instructions/guidelines included in the University/ institutional/ students' handbook etc.

2.2 Endangering Health or Safety

- Endangering behaviour: Taking or threatening action that endangers the safety, physical or mental health, or life of any person, or creates a reasonable fear of such action. Relationship violence or intimate partner abuse may constitute endangering behaviour.
- Stalking: Engaging in a pattern of unwanted conduct directed at another person that threatens or endangers the safety, physical or mental health, or life or property of that person, or creates a reasonable fear of such a threat or action.
- Sexual harassment: Sexual harassment of fellow students and other people on the campus. Sexual harassment includes sexual advances, sexual solicitation, requests for sexual favours, and other verbal or physical conduct of a sexual nature.
- Indecent exposure: Defined as the exposure of the private or intimate parts of the body in a lewd manner in public or in private premises when the accused may be readily observed.

2.2 Destruction of Property

Actual or threatened damage to or destruction of university property or property of others, whether done intentionally or with reckless disregard

2.3 Dangerous Weapons or Devices

Storage or possession of dangerous weapons, devices, or substances including, but not limited to, firearms, ammunition, or fireworks.

2.4 Dishonest Conduct

Dishonest conduct, including, but not limited to: knowingly reporting a false emergency; knowingly making false accusation of misconduct; misuse or falsification of university or related documents by actions such as forgery, alteration, or improper transfer; submission of information known by the submitter to be false to a university official.

2.5 Theft or Unauthorized Use of Property

Theft, or the unauthorized use or possession of university property, services, resources, or the property of others.

2.6 Failure to Comply with University or Civil Authority

Failure to comply with legitimate directives of authorized university officials, law enforcement or emergency personnel, identified as such, in the performance of their duties, including failure to identify oneself when so requested; or violation of the terms of a disciplinary sanction.

2.7 Drugs

Use, production, distribution, sale, or possession of drugs in a manner prohibited under law. This includes, but not limited to the misuse of prescription and prohibited drugs under the laws of Zambia.

2.8 Alcohol

Use, production, distribution, sale, or possession of alcohol in any manner on University premises.

2.9 Unauthorized Presence

Unauthorized entrance to or presence in or on university premises.

2.10 Disorderly or Disruptive Conduct

Disorderly or disruptive conduct that unreasonably interferes with university activities or with the legitimate activities of any member of the university community.

2.11 Hazing

Doing, requiring, or encouraging any act, whether or not the act is voluntarily agreed upon, in conjunction with initiation or continued membership or participation in any group that causes or creates a substantial risk of causing mental or physical harm or humiliation. Such acts may include, but are not limited to, use of alcohol, creation of excessive fatigue, and paddling, punching or kicking in any form.

2.12 Abuse of Student Conduct System

Abuse of any university student conduct system, including but not limited to:

- Failure to obey the summons or directives of a student conduct body or university official;
- Falsification, distortion, or misrepresentation of information before a student conduct body;
- Disruption or interference with the orderly process of a student conduct proceedings;
- Knowingly instituting of a student conduct proceeding without cause;
- Discouraging an individual's proper participation in, or use of, a university student conduct system;
- Influencing the impartiality of a member of a student conduct body prior to, and/or during the module of a student conduct proceeding;
- Harassment and/or intimidation of a member of a student conduct body prior to, during, and/or after a student conduct proceeding;
- Failure to comply with one or more sanctions imposed under the code of student conduct; and
- Influencing another person to commit an abuse of a university student conduct system.

2.13 Violation of University Rules

Violation of other published university regulations, guidelines, policies, or rules, or violations of country laws. These university regulations, guidelines, policies, or rules include, but are not limited to, those which prohibit the misuse of computing resources, sexual harassment, rules for student groups or organizations, and residence hall rules and regulations.

2.14 Riotous Behaviour

Participation in a disturbance with the purpose to commit or incite any action that presents a clear and present danger to others, causes physical harm to others, or damages property. Prescribed behaviour in the context of a riot includes, but is not limited to:

- Knowingly engaging in conduct designed to incite another to engage in riotous behaviour;
- Actual or threatened damage to or destruction of university property or property of others, whether done intentionally or with reckless disregard;
- Failing to comply with a directive to disperse by university officials, law enforcement, or emergency personnel;
- Intimidating, impeding, hindering or obstructing a university official, law enforcement, or emergency personnel in the performance of their duties: and
- Political, sectarian or ethnic activism in the form of gatherings, demonstrations, walks or riots on university premises

2.15 Recording of Images without Knowledge

Using electronic or other means to make a video or photographic record of any person in a location where there is a reasonable expectation of privacy without the person's prior knowledge, when such a recording is likely to cause injury, distress, or damage to reputation. This includes, but is not limited to, taking video or photographic images in shower/locker rooms, residence hall rooms, and restrooms. The storing, sharing, and/or distributing of such unauthorized records by any means is also prohibited.

3.0 Student Responsibilities and Disciplinary Actions

The following rules and regulations apply to all students. Students have the duty of acting responsibly. If students do not follow the regulations disciplinary action will follow as stipulated for each circumstance below.

3.1 Registration

3.1.1 Students have the responsibility of registering for modules during the registration period specified by the University. The registration period for each semester ends after the fourth week of the semester. The entire student body is expected to be part of this process. Any student with outstanding balance from the previous semester will not be eligible to register until he/she clears all outstanding balances from the previous semester.

3.1.2 A student must not attempt to register for the semester or register for a programme or course for which one has not been admitted. The affected student shall be barred from registering or will be deregistered from the programme/course and given a written warning.

3.1.3 A student must not register or attempt to register for courses that do not contribute to the award of one's programme of study. Courses that are not part of a student's programme of study will not count towards the award of the degree/diploma.

3.1.4 A student must not register or attempt to register for a programme or course when one has been excluded from school for failing to make academic progress or for any other reason, without formal reversal of exclusion by the Senate or its Chairperson (the Vice Chancellor). The affected student shall be barred from registering or deregistered from the programme/course and given a written warning.

3.1.5 A student must not change a programme of study without written permission from the relevant Dean of a School. The affected student shall be suspended from the University for one academic year.

3.1.6 A student must not withdraw from studies without permission from the Dean of the School in which the student is registered. Any fees paid will be forfeited and the affected student shall be given a failing grade of WWP (withdrawn without permission) against the course(s) at the end of the semester. The student will have to repeat the course(s) in the next semester that the course(s) is/are offered.

3.1.7 A student must not register or attempt to register for more than one degree, diploma or certificate programme of the University in the same academic year, without special permission from Senate. The affected student shall be suspended for one academic year.

3.1.8 A student must not register or attempt to register as a student of another institution in the same academic year, without special permission of Senate. The affected student shall be suspended for one academic year.

3.1.9 A student must not continue receiving academic guidance from their dissertation supervisor without registering in a given semester. The affected student shall have supervisory services suspended for one academic year.

3.1.10 A student must not register for courses under names that are different from those used when applying for admission, without going through the due process of formally changing names. The affected student shall be suspended from studies for one academic year.

3.1.11 A student must not register or attempt to register for a higher programme of study before successfully completing a lower programme of study, unless with the express permission of Senate. The affected student shall be suspended for one academic year.

3.1.12 A student must not register or attempt to register for semester courses without paying full fees for the previous semester. The affected student shall be deregistered from particular semester and any monies paid shall be forfeited.

3.1.13 A student must not register or attempt to register for a semester (resume studies) after a withdrawal with permission or appeal against exclusion without written authority or express permission from Senate respectively. The affected student shall be suspended for one academic year.

3.2 Face To Face Sessions/Residential School

3.2.1 A student must not miss a residential school or any other prescribed face – to – face sessions, without written permission from the Dean of the School in which the student is registered. The affected student shall not be allowed to continue with his/her studies during the year the face-to-face classes/residential school is held. However, the Senate shall use its discretion to allow the student to continue with his/her studies depending on the reasons given for failure to attend the prescribed face – to – face sessions.

3.2.2 A student must not attend face-to-face sessions or residential school classes without registering for courses, unless otherwise allowed, in writing, by the relevant authorities to do so. The affected student shall be barred from the face-to-face classes or residential school.

3.2.3 A student must not display disruptive behaviour substantially or repeatedly in either lecture rooms or residential halls during the residential school or during any other face – to – face sessions. The affected student shall be suspended for one academic year.

3.2.4 A student must write all prescribed tests or assignments for submission at a scheduled date, which count towards continuous assessment. Any student who fails to meet deadlines shall not be given any other opportunity to write the missed tests/assignment and shall lose marks towards continuous assessment.

3.2.5 A student must sign the face-to-face /residential school register. Any student who does not sign the register may be deemed to have missed the residential school and may not be allowed to continue with his/her studies.

3.2.6 A student must not leave the residential school/ face-to-face classes before its official closure or conclusion, without permission. Any student who leaves sessions/classes without permission shall be suspended from the University for one academic year.

3.3 Course Materials

3.3.1 A student must not obtain or attempt to obtain course materials before registering for courses. The affected student shall be suspended for one academic year.

3.3.2 A student must not reproduce CUZ course materials (modules and other instructional resources) for commercial purposes or any personal gain. The affected student shall be suspended from the University for one academic year.

3.3.3 A student must not share course materials with another student who has not paid fees nor registered for courses, for the purpose of assisting them to write and submit assignments for marking. The affected student will be suspended from studies for one academic year.

3.3.4 A student must not share course materials with other persons who are not bonafide students of CUZ. The affected student shall be suspended from studies for one academic year.

3.3.5 A student must not obtain or attempt to obtain extra course materials by false pretences such as pretending that course materials obtained at the time of registration have been lost or claiming that the course materials were not available at your regional centre. The affected student shall be suspended from studies for one academic year

3.3.6 A student must not obtain or attempt to obtain course materials for courses other than those for which the student is registered. The affected student shall be suspended from studies for one academic year.

3.3.7 A student must not steal or attempt to steal course materials. The affected student shall be expelled from the University without room for readmission at later date.

3.4 Assignments

3.4.1 A student must not submit or attempt to submit assignments or any other work for marking without paying the prescribed fees for the courses. The affected student shall be suspended from studies for one academic year.

3.4.2 A student must not submit or attempt to submit assignments or any other work for marking for courses other than those for which the student is registered. The affected student shall be suspended from studies for one academic year

3.4.3 A student who purports to have submitted an assignment to a Lecturer when in fact not, commits an offence and shall be awarded a mark of 0%. With regard to contact students, all assignments or any other written work for marking shall be submitted, and signed for, to the course Lecturer or, with the Lecturer's written permission, to the Dean or any other lecturer appointed for the purpose.

For distance learning students, assignments must be submitted via the Moodle platform. Any challenge faced by a student in submitting assignments or any other written work must be communicated in writing to the Director of Distance Learning or, in his or her absence, the Registrar or Faculty Dean.

3.4.4 A student must not submit or attempt to submit assignments or any other written work, for marking, after the submission due date.

Penalties:

- If the assignment or any other written work is up to seven (7) calendar days late 10 marks shall be deducted.
- If the assignment or any written work for marking is between eight (8) and 14 calendar days late 20 marks shall be deducted.
- If the assignment or any other written work is more than 14 calendar days late it becomes a non submission, that is, it shall be considered not to have been submitted and cannot now be submitted.

3.4.5 A student must not falsely claim to have submitted assignments or any other written work for marking when in fact one has not done so. The affected student shall be suspended for one academic year.

3.4.6 A student must not give false reasons for submitting assignments or any other written work for marking, after the due date or to seek an extension of deadline for submitting assignments or any other

written work for marking. The affected student shall be given a written warning

3.4.7 A student must not write assignments or any work for marking for someone else. The affected students shall be suspended from studies for one academic year.

3.4.8 A student must not engage another person or persons to write assignments or any other written work for marking on their behalf. The affected student shall be expelled from the University without room for readmission at later date.

3.4.9 A student must not engage in any form of plagiarism such as using or reproducing paraphrasing ideas, words or statements from published material or of another person without due acknowledgment, that is, without citing the appropriate source(s). The affected student shall be given a failing grade and a written warning.

3.4.10 A student must not submit another student's work or obtain a paper from the internet or any other source and submit it as one's own work. The affected student shall be given a failing grade and a written warning.

3.4.11 A student must not, by agreement with another student, prepare and submit substantially the same or identical assignments or any other written work for marking. The assignments shall be awarded a failing grade or the grades shall be nullified. The affected student(s) shall be suspended for one academic year.

3.4.12 A student must not approach any lecturer or any other member of staff for assistance when preparing assignments or any other work to be submitted for marking. The assignment grade shall be nullified and the affected student shall be suspended for one academic year.

3.4.13 A student must not knowingly allow another student to submit a copy of his/her assignment or any other work submitted for marking (marked or unmarked) as his or her own. The assignment grades shall be nullified and the affected students shall be given a written warning.

3.4.14 A student must not fabricate, falsify or invent any data or information on laboratory assignments or research reports and citation of references or sources. The grades shall be nullified and the affected student shall be expelled from the University without room for readmission at later date.

3.4.15 A student must not steal or destroy another student's assignment(s) or any other written work submitted for marking. The affected student shall be suspended from studies for one academic year.

3.4.16 A student must not give false references or sources of information in an assignment or any other written work submitted for marking. The affected student will be given the next lower grade than would have ordinarily been attained and a written warning

3.4.17 A student must not get any unauthorized assistance in any practical work such as laboratory work or in conducting research or fieldwork. The affected student shall be expelled from studies for one academic year.

3.4.18 A student must not engage or allow a third party to write an assignment or undertake research or field work or prepare any related work and submitting the same for marking. The affected student shall be suspended from studies for one academic year and any grade awarded for such work shall be nullified.

3.4.19 A student must not alter a grade or marks on marked assignment or any other written work submitted for marking. The affected student shall be suspended for one academic year and shall have his/her grade nullified.

3.5 Examinations

3.5.1 A student must not write or attempt to write examinations without registering for courses. The affected student shall be barred from the examinations.

3.5.2 A student must not write or attempt to write examinations without paying fees or any other monies due or payable to the University in full, unless granted written permission by the Registrar. The affected student shA student must not present a forged confirmation of registration/examination docket or identity card/document. The affected student shall be barred from writing the examination and expelled from the University.all be barred from the examinations.

3.5.3 A student must not write or attempt to write examinations before submitting all the required assignments or any other written work or completing a prescribed project that counts towards continuous assessment. The affected student shall be barred from examinations and the examination result NE (Not Examined) shall be entered against a particular course.

3.5.4 A student must not enter or attempt to enter an examination hall/room before presenting or without the required documents, namely confirmation of registration/examination docket and student identity card or any other acceptable identity card such as national registration, valid passport or driving licence. The affected student shall be barred from writing an examination and the examination result NE (Not Examined) shall be entered against a particular course.

3.5.5 A student must not write names on the Answer Booklets, instead of student identification numbers only. The affected student shall have his/her results grade in the particular course reduced to the next lower grade.

3.5.6 A student must not present a forged confirmation of registration/examination docket or identity card/document. The affected student shall be barred from writing the examination and expelled from the University.

3.5.7 A student must not take any examinations whilst serving a suspension or expulsion. The affected student shall be expelled from the University and his/her results nullified in all the courses examined; and in case of an expelled student his/her results shall be nullified in all the courses examined.

3.5.8 A student must not write or attempt to write an examination in a course that does not appear on the confirmation of registration slip and examination docket and the name of the student does not appear on the examination register. The affected student shall not be allowed to write the examination. However, the Chief Invigilator may allow such student but will put aside the examination answer booklet (s) pending investigations by the academic office on the status of the student.

3.5.9 A student must not miss an examination on account of misreading the examination time – table. A grade of NE (Not Examined) shall be awarded and the affected student will have to register for the course and write the examination during the next semester that the course is offered.

3.5.10 A student must not arrange or attempt to provide or receive answers during an examination. The affected student shall be sent away from the examination room and suspended for one academic year and any grade awarded in that particular examination shall be nullified.

3.5.11 A student must not copy from another student, with or without the other student's knowledge, during an examination. The affected student shall be sent away from the examination room and suspended for one academic year and any grade awarded shall be nullified.

3.5.12 A student must not obtain a copy and/or share an examination paper or test in advance of its scheduled examination date and time. The affected student shall be expelled from the University without room for readmission at later date.

3.5.13 A student must not steal or otherwise discover and/or make known to other students or other people the contents of an examination paper that has not yet been administered. The affected student shall be expelled from the University without room for readmission at later date.

3.5.14 A student must not communicate the content of any examination or test to other students. The affected student shall be expelled from the university without room for readmission at later date.

3.5.15 A student must not bring or be found with pre-written answers during the examination. The affected student shall be sent away from the examination room and expelled from the University without room for readmission at later date.

3.5.16 A student must not knowingly or unknowingly, be in possession of, use, or attempt to use any unauthorized material and/or electronic devises during the examination. The affected student shall be sent away from the examination room/hall and suspended from studies for one academic year.

3.5.17 A student must not obtain or try to solicit help or obtain information from another student or other unauthorized source(s) during an examination. The affected student shall be sent away from the examination room and will be awarded a 'Not Examined' result.

3.5.18 A student must not engage or attempt to engage another person to write an examination on one's behalf. The affected student shall be expelled from the University without room for readmission at later date.

3.5.19 A student must not leave examination answer books exposed to view, knowingly or unknowingly, or attempting to read another student's examination answer books. The affected student shall be sent away from the examination room and any grades for the examination shall be nullified.

3.5.20 A student must not engage in unauthorised communication with other students during the examination. The affected students shall be sent away from the examination room and shall be awarded a 'Disqualified' result.

3.5.21 A student must not engage in disruptive/disorderly or riotous conduct during the examination. The affected student shall be barred from the examination and expelled from the University without room for readmission at later date.

3.5.22 A student must not continue writing after expiry of prescribed examination time is announced by the Chief Invigilator. The affected student shall have his/her results grade in the particular course reduced to the next lower grade.

3.6 Library

3.6.1 A student must not engage in conduct that disturbs other readers in the library such as shouting, speaking very loudly or using a mobile phone. The affected student will be banned from the Library for one semester.

3.6.2 A student must not steal or attempt to steal library books and any other library resources. The affected student shall be expelled from the university without room for readmission at later date.

3.6.3 A student must not mutilate and/or remove library books or any other library resources. The student shall be expelled from the University without room for readmission at later date.

3.6.4 A student must not keep library material after the return due date. The affected student shall be charged with an amount to be determined by the University at the specified time.

3.6.5 A student must not resist leaving the library after the official closing time. The affected student shall be given a written warning thereafter the student shall be barred from the use of the Library.

3.7 Halls Of Residence And University Buildings

3.7.1 A student must not engrave paintings or writings which may result in disfiguring the walls or doors in any part of the halls of residence or any University building. The affected student shall pay the actual cost of repairing the damage.

3.7.2 A student must not willfully lose or damage University furniture, windows, doors, beddings, curtains and other fittings. The affected student shall be charged the actual cost of redressing the damages.

3.7.3 A student must not play loud music at any given time to the extent of disturbing other students. The affected student may either be suspended from residence for one semester or the musical instrument confiscated, or both.

3.7.4 A student must not remove University furniture, fittings from study rooms, lecture rooms, or any other place without prior written permission from the Registrar. The affected student shall pay a fine of or the actual cost for replacing the item or the student shall be suspended from residence for one semester.

3.7.5 A student must not change accommodation without prior written permission from the Registrar. The affected student shall be suspended from residence for one academic year or any other period that may be decided by the University.

3.7.6 A student must not charge squatter fees and sublet a room in halls of residence. The affected student shall be suspended from the University for one academic year.

3.7.7 A student must not duplicate room keys without prior written permission from the Registrar. Any loss of study room keys should be reported immediately to the Hall Attendant on duty. The student shall be suspended from residence for one academic year.

3.7.8 A student must not take away University property and study room keys at the end of each semester or before the student leaves campus for vacation or upon graduation. The affected student shall be charged the actual cost of the item. In case of graduating students, their results and graduation shall be withheld until the payment of the fine.

3.7.9 A student must not remain in residence during vacation without prior written permission from the Registrar. The affected student shall either be charged at current commercial rate for the period he/she remains in residence or be suspended from residence for one Academic Year. In case of graduating students, their results and graduation shall be withheld until they pay the penalty accommodation fees.

3.7.10 A student must not bring personal property such as beds, mattresses, lockers and furniture into the halls of residence without prior written permission from the Registrar. Any unauthorized property brought into the University premises shall be forfeited; and the student may be removed from residence for one Semester.

3.7.11 A student must not turn undesignated places other than those prescribed into sleeping quarters. The affected student shall be suspended from the University for one Academic Year.

3.7.12 A student or club/association/society must not sell merchandise or operate phone facilities for commercial purposes in the rooms. The student/club/association/society shall be deregistered and the individual student may be suspended from residence for one academic year.

3.8 General

3.8.1 A student must not engage in any form of sexual harassment or abuse. The affected candidate shall be suspended from the University for one Semester.

3.8.2 A student must not engage in fighting or any violent behaviour for any reason. The student shall be suspended from the University for one Academic Year.

3.8.3 A student must not threaten violence, use abusive language or insult and engage in disorderly conduct for any reason. The student shall be suspended from the university for one Semester.

3.8.4 A student must not be in possession of explosives, firearms and ammunition. The affected student shall be expelled from the University without room for readmission at later date.

3.8.5 A student must not be in possession or engage in consumption of prohibited drugs. The affected student shall be expelled from the University without room for readmission at later date.

3.8.6 A student must not be engaged in theft of any kind, misappropriation of funds, fraud and any criminal activity. The affected student shall be expelled from the University without room for readmission at later date.

3.8.7 A student must not incite fellow students or any other person, or conspire with other students or persons to contravene any of the general rules and regulations. The affected student shall be suspended from the University for two academic years.

3.8.8 A student must not engage in any act that may be detrimental to or endanger the maintenance of discipline or which is detrimental to providing normal services at the University. The student shall be suspended from the University for one academic year.

3.8.9 A student must not engage in any class boycotts, unauthorized demonstrations or disturbance of academic lectures or tests/examinations, and picketing in the Library. The affected student shall be expelled from the University without room for readmission at later date.

3.8.10 A student must not engage in riotous behavior and vandalism resulting in damage to any property within the premises. The student shall meet the cost of the repairs and be expelled from the University without room for readmission at later date.

3.8.11 A student must not smoke tobacco or cigarettes or take alcoholic beverages in any undesignated area. The affected student shall be fined a prescribed fee.

3.8.12 A student must not withdraw from studies or fail to write examinations without permission. The affected student shall forfeit any of or monies fees paid and shall be deemed to have withdrawn without permission (WWP).

4.0 Initiation Of Disciplinary Procedure

The Disciplinary Procedure shall be initiated when a person reports an allegation of misconduct to the Dean of School. Where the School of the student against whom an allegation is made is not known (but the name of the student subject to the allegation is known) the report may be made to the Quality Assurance Office in the first instance. It is the responsibility of the Dean of School to notify the student in writing of the general nature of the alleged misconduct reported.

The Dean of School shall normally hold a preliminary interview with the student before deciding whether any further action should be taken. If the allegation arises from investigations under Academic Misconduct, there is no requirement to hold a preliminary interview. The preliminary interview shall normally take place within 5 working days of the alleged misconduct being reported. Subsequent to the interview, the Dean of School may dismiss the allegations immediately if the Dean believes that there is no case for the student to answer, or if there is another reason to do so. The Dean of School may elect to suspend the student from some or all of their University activities pending further investigation either by the University or the Police. Where the student is also a member of staff, guidance should be sought from the Human Resources Office and the Quality Assurance Office as to whether any allegation might be considered under a separate specific procedure.

4.1 Representation at Meetings and Hearings

The student may be accompanied at any meeting or hearing by a representative of the student's choice and that representative must be willing to act in this capacity and may speak on the student's behalf. The representative must not be someone who has been suspended or excluded from the University for any reason. It is the responsibility of the student (and not the University) to relay all relevant notices and other communications under the Procedure to the representative. Where a representative is attending a hearing on the student's behalf:

- The hearing will only be required to consider the representations which are made by the representative on the student's behalf at the hearing and not normally any written or oral representations which the student may make before or at that hearing;
- The student must provide the name of the representative in writing to the University before the hearing.

4.2 Attendance at Meetings and Hearings

If, for good reason, a student is unable to attend a meeting or hearing under the Procedure, then the student may request permission from the University for the student's representative (see Section 5.5) to attend that meeting or hearing without the student to present the case on the student's behalf. Where the student can evidence good cause, a hearing maybe postponed at the discretion of the Dean/Chair of the Panel. The student will be responsible for paying the costs of their own or their representative's attendance and the University will not reimburse them. A student may request to attend the hearing via "video conference". In such cases the student must make the request in writing at least 5 working days prior to the hearing. The student is responsible for ensuring that they, the student, have access to appropriate technology.

4.3 Summary Procedure

If the Dean of School considers it appropriate to do so, and if the student agrees, the matter may be dealt with summarily at a meeting, normally held within a minimum of 10 working days and a maximum of 20 working days after the preliminary interview unless the student agrees in writing that a shorter period is acceptable, and without recourse to the Disciplinary Panel. In reaching a decision on whether the matter should be dealt with summarily, the Dean of School shall consider the nature of the allegation and whether the penalties available in the event of a decision of that an act of misconduct had occurred would in the Dean's view be sufficient. The Dean of School shall issue notice to all parties accordingly. Another member of School staff (or a member of staff appointed by the Registrar) shall also be present and shall advise the Dean of School and keep a brief record of the proceedings. The student shall be advised by the Dean of School that the following factors will be taken into account as mitigation in determining an appropriate penalty in the event of an admission or a decision that an act of misconduct had occurred:

- That the student admitted the misconduct at the earliest opportunity. Some degree of mitigation will still be given even if the student admits the misconduct later in the process, provided that this admission is before any hearing;
- That the student agrees to the matter being dealt with on a summary basis rather than by the Disciplinary Panel.

If the matter is dealt with summarily, the Dean of School shall consider written or oral evidence as they think fit. The Dean of School shall find the student had committed an act of misconduct only if, on the available evidence, the Dean is satisfied, on the balance of probabilities, of the occurrence of misconduct. If the Dean finds the student committed an act of misconduct, the Dean may impose any of the penalties set out in Section 3.0.

At the termination of the proceedings, the Dean of School shall write to the student. If the Dean of School finds the student had committed an act of misconduct, the letter shall set out the alleged misconduct, a brief summary of evidence received, the grounds for the decision that an act of misconduct had occurred, the penalty imposed, and the factors taken into account in deciding the penalty. A copy of the brief record of the proceedings and any letter to the student shall be lodged with the Quality and Assurance Office.

In either of the cases below, the Dean of School may refer the matter to the Student Disciplinary Panel under the procedure set out below:

- The Dean of School does not consider it appropriate to deal with the matter summarily
- The student does not agree to the matter being dealt with summarily.
- Having agreed to have the matter dealt with summarily, the student fails without good cause to attend the meeting which is arranged by the Dean of School.

There is a right of appeal against both a decision that an act of misconduct had occurred and any penalty imposed under this procedure. The appeal may be addressed to the Chairperson of Senate within 10 calendar days of receiving a disciplinary letter. The Vice Chairperson of Senate shall within 15 calendar days make a decision which should be final.

4.4 Student Disciplinary Panel

If a matter is to be referred to the Student Disciplinary Panel, the Dean of School shall notify the Quality Assurance Office. The Quality Assurance Office shall convene the Panel and shall notify the student in writing of the alleged misconduct and of the arrangements for further consideration of the student's case. If there are a series of related alleged misconducts involving one or more students the Panel may, at the discretion of the Chair, deal with all the allegations at one hearing.

The matter shall usually be considered at the next scheduled meeting of the Student Disciplinary Panel. However, after the initial interview between the student and the Dean of School the student shall be given a minimum of 10 working days' notice before the meeting of the Panel and invited to attend except where the Dean has agreed in writing that shorter notice is acceptable.

Membership of the Panel shall be drawn from a pool of staff members nominated by Deans of Schools and nominees of the Students' Union. Different staff will be involved in offering guidance to students, than those serving as Panel members. Each meeting of the Panel shall comprise at least two staff members, one of whom shall be Chair, and one nominee of the Students' Union. All Panel members shall be drawn from outside the student's School. An officer of the Quality and Enhancement Office shall act as Secretary but shall not constitute a member of the Panel or take part in the decision making. The Dean of School or nominee shall attend to present the case.

The Secretary of the Panel shall ask the Dean of School or nominee to set out the allegation(s) in full (and to name witnesses, if any, to be called) in advance of the hearing. A copy shall be sent to the student at least 10 working days before the hearing. The student shall respond in writing no later than 5 working days before the hearing to the allegations provided in writing, outlining the basis of their defence against the allegations and naming witnesses, if any, who are to provide evidence in writing or who are to be called. Evidence to be provided in writing must be submitted no later than 5 working days before the hearing. The Dean of School or nominee and the student may call witnesses. The Secretary of the Panel may also call for witness statements in support of the allegation in advance of the hearing. If such statements are requested they are required to be submitted to the Quality Assurance Office at least 5 working days before the allegation is heard. Such statements shall be circulated to all parties in advance of the hearing. The Order of Proceedings shall normally be as follows:

- Introduction of those present, outline of procedure;

- Student invited to declare any factors which may affect their performance in the hearing;
- The allegations of misconduct shall be set out by the Dean of School or nominee;
- The student, or the student's representative, shall respond to the allegations;
- The Panel shall have the opportunity to question both the Dean of School or nominee and the student;
- Either party may call witnesses who shall attend only to present their evidence and to answer any questions that the Panel, or the other party may put to them through the Chair. Once their evidence has been heard and there are no more questions, witnesses shall be required to withdraw (students shall bear the costs of whichever witnesses they choose to call);
- The Dean of School or nominee shall sum up the allegations. New evidence is not admissible at this time;
- The student shall sum up. New evidence is not admissible at this time;
- The Dean of School or nominee and the student shall withdraw whilst the Panel reach their decision.

The order may be varied at the discretion of the Chair. Witnesses can be required to attend to give evidence in person. The Panel may accept a witness's written statement in evidence where the student agrees that the witness need not attend, or where it is impracticable for the witness to attend, or where in the opinion of the Panel it is for some other reason in the interest of justice to do so. The Panel may impose time limits on oral addresses and submissions. The Panel shall rely only on evidence presented at the hearing, or in written format beforehand.

The Panel may ask for additional enquiries to be undertaken and may call for additional witnesses to attend. If two or more students are involved in related allegations of misconduct, the Panel may at its discretion deal with their cases together.

Exceptionally, at the discretion of the Panel, proceedings may be adjourned for a period not normally exceeding 20 working days in the first instance, and its decision deferred for that period. The Panel shall find a student had committed an act of misconduct, on the evidence before it, it is satisfied on the balance of probability that the student had committed the act of misconduct. If the members of the Panel cannot agree, the verdict of the Panel shall be that of the majority of its members. A decision that an act of misconduct has occurred should be made based on the evidence of the specific instance before the Panel. When considering the Penalty, the Panel should be permitted to consider evidence relating to similar types of misconduct previously confirmed. As an example, a Dean of School or nominee may refer to misconduct in a previous case relating to the Academic Misconduct where a breach of academic conduct is alleged. However, a Dean of School or nominee may not refer to proven misconduct in relation to damaging University property where the new allegation relates to the academic misconduct. Any evidence regarding previous misconduct cases of a similar nature must be considered alongside all other evidence submitted when deciding on a penalty, but must not form the sole or main evidence otherwise considered. Wherever possible, the decisions of the Panel, whether an act of misconduct had occurred and any penalty/penalties shall be communicated orally to the student after adjourning to consider the evidence and shall also be confirmed in writing, normally within 5 working days. Where this oral communication is not possible the decisions of the Panel shall nevertheless be communicated in writing to all parties, normally within 5 working days. The decision of the Panel shall be communicated to the School. Except with the authority of the student, the proceedings of the Panel shall remain confidential, with the exception of its verdict and any penalty imposed.

5.0 Enforcement Of The Code Of Conduct

5.1 Dissemination

5.1.1 The effective enforcement of the Code of Conduct will depend, very much, on the extent to which its provisions are understood, accepted and internalised by the students, staff and other stakeholders. Therefore, the document will be disseminated as widely as possible through various channels as follows:

5.1.1.1 All bona fide students of the University will receive printed copies of the document which they will sign for and acknowledge receipt. Copies of the Code of Conduct will be made available in the Library, at Regional Centres and on the University website.

5.1.1.2 Relevant extracts of the Code of Conduct shall be distributed to the students as a reminder, a month before each main activity related to the provisions of a particular activity, in form of a circular. This means that the provisions of the document related to Course registration and submission of assignments will be distributed before the commencement of each academic year. The same will apply for those that relate to examinations.

5.1.1.3 Important aspects of the Code of Conduct will be highlighted during residential school orientation meetings.

5.1.1.4 The Learners' Guide will highlight the importance of the Code of Conduct and the need for students to familiarise themselves with its provisions, and more importantly to comply with its provisions.

5.2 Effective Date

The enforcement of the Code of Conduct, that is, its general rules and regulations shall take effect upon the date of the same being approved by the Senate.

5.3 Responsibility For Enforcement

5.3.1 The Quality Assurance Officer, Registrar, Directors, Deans and Librarian shall exercise disciplinary control on all CUZ registered students on the infringements of rules and regulations arising in areas under the jurisdiction of the University. They shall ensure the enforcement of penalties by not letting suspended or expelled students from attending classes or lectures, submitting assignments, tests and examinations, or engaging in any academic activity of CUZ. A student who is suspended or expelled shall too be excluded from all the CUZ activities.

5.3.2 Any student who is suspended or expelled shall lose any claim for refund or reduction of money paid as tuition, accommodation and other fees to CUZ. In case of suspended students, they shall have to pay all outstanding fees at the time of suspension before being re-admitted.

5.3.3 Unless circumstances dictate otherwise, where a student fails once to attend disciplinary meetings when required to do so, the Disciplinary Panel shall hear the case in absentia at its next meeting.

Abbreviations And Terms Used

"Course Materials" means Modules, Study Guides, Handouts, or any other instructional resources.

"Disruptive/Disorderly Or Riotous Behaviour" means shouting or speaking loudly on the phone or not and includes violent conduct that may cause fear and apprehension among those in the vicinity.

"ODL" means Open and Distance Learning.

"Prohibited Drugs" has the same meaning assigned to such drugs by the Dangerous and Pychotropic Substances Act of Zambia

“Not Examined” is recorded against a student who either did not write her/his examination or she/he was prevented from writing a particular examination for infringement of any of the provisions relating to examinations under this Code of Conduct.

“Relevant Authorities” means Senate, Vice Chancellor, Registrar, Dean of School, Director.

“Sexual Harrassment” has the same meaning assigned to it under the laws of Zambia

“Student Disciplinary” means a body constituted by the Vice Chancellor from Panel among senior academic and non-academic staff to which all cases of breach or infringement of any part of this code of conduct shall be referred for hearing and determination.

“Unauthorised material” means Books, Study Guides, Modules, Statutes not authorized to be taken in the examination room as well as phones, note pads and all recording and copying devices.

“CUZ Premises” means classroom, Library, Hall of Residence, Residential School or face – to – face instruction facility, Administration offices and Staff/Lecturer Rooms